

seeking compensation for those fees.” (*Id.* at 1339 [internal quotation marks omitted].) In other words, if as a result of a tort the victim must pay an attorney to sue someone other than the tortfeasor, the cost of that action is part of the injury and can be part of the damages award for the tort claim.

Here, the Cross-Complaint alleges that Kooken “encouraged Alviz and Alfonso not to repay Merchant Cash Advances that GIL had taken out on behalf of the business” and that “[a]s a result, the lender, Capital Infusion, LLC, initiated a lawsuit in January 2023 against GIL, Macrobuild, and Alfonso, seeking payment for the unpaid balance, which GIL had to spend money defending.” (XC at ¶ 12.) Cross-Complainant argues in opposition to the demurrer that the Cross-Complaint alleges the elements of the tort intentional interference with contractual relations and support his cause of action for tort of another.

“The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Pac. Gas & Elec. Co. v. Bear Stearns & Co.* (1990) 50 Cal. 3d 1118, 1126.) The Cross-Complaint alleges that Kooken “stopped repayment of the Merchant Cash Advances that GIL had taken out on behalf of the business and personally guaranteed” (XC at ¶ 25); that “[a]s a direct result of the stopping repayment, a collection action was filed against GIL by Capital Infusion (Case No. 23VECV00143), which he was forced to defend against and ultimately settle.” (XC at ¶ 26.)

Cross-Complainant has sufficiently pled an underlying tort which caused him to incur damages. Cross-Defendant has not cited any authority, and the Court is not aware of any, which also requires Cross-Complainant to separately plead the tort which he relies on for his tort of another claim.

The Demurrer to this cause of action is **overruled**.

4. 9:00 AM CASE NUMBER: C23-00841

CASE NAME: ANGELITO ALVIZ VS. VIRGILIO LEGARTE

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS, SET 1
FILED BY: ALVIZ, ANGELITO**

TENTATIVE RULING:

Continued to February 26, 2026, 9:00 a.m. by stipulation and order entered December 5, 225

5. 9:00 AM CASE NUMBER: C24-00016

CASE NAME: NICHON ROBERSON VS. BL HOMES, INC

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLTF ROSALYN ENFIELD
FILED BY:**

TENTATIVE RULING:

Denied, without prejudice. Fails to comply with CRC 3.1362(c), which requires that counsel's declaration “state in general terms and without compromising the confidentiality of the attorney-client relationship” why a motion is necessary. If counsel notifies the Court that they wish to appear, they may appear and request a continuance to submit a supplemental declaration.